

		Defendant did not strictly comply with rule 3.350 because the notice of motion was not filed in the related <i>Catalina Riviera</i> action. Although this constitutes a procedural defect, no opposition has been filed and no resulting prejudice has been identified. The Court therefore addresses the merits notwithstanding the procedural defect. The two actions arise from the same November 10, 2023 fire aboard Catalina Riviera, LLC's yacht and involve substantially the same operative facts concerning the yacht's battery and electrical systems. In <i>ACE American Insurance Company v. Sun Country Yachts, et al.</i>, ACE, as Catalina Riviera's subrogating insurer, asserts negligence against Sun Country and strict products liability against Antigravity. In <i>Catalina Riviera LLC v. Sun Country Marine Group, et al.</i>, Catalina Riviera asserts the same claims, along with an additional breach of contract claim against Sun Country arising from the battery conversion agreement. Although the plaintiffs are different and Catalina Riviera asserts an additional contract claim, both actions involve the same incident, defendants, causation issues, witnesses, and expert evidence. Consolidation would therefore avoid duplicative discovery and testimony, conserve judicial resources, and reduce the risk of inconsistent rulings. The motion is unopposed, and the record does not demonstrate undue confusion, delay, or prejudice. The actions are consolidated for all purposes, with <i>ACE American Insurance Company v. Sun Country Yachts, et al.</i>, Case No. 30-2025-01481107-CU-PL-CJC, designated as the lead case. Moving party to give notice.
56	Beck vs. Cournoyer 25-01501489	Demurrer to Amended Complaint Defendant Erin O'Hara Cournoyer's Demurrer to the first cause of action for usury contained within the First Amended Complaint is OVERRULED. As the California Supreme Court explained in <i>Ghirardo v. Antonioli</i> (1994) 8 Cal.4th 791, 798, "The California Constitution, article XV, section 1, states 'No person, association, copartnership or corporation shall by charging any fee, bonus, commission, discount or other compensation receive from a borrower more than the interest authorized by this section upon any loan or forbearance of any money, goods or things in action.' The essential elements of usury are: (1) The transaction must be a loan or forbearance; (2) the interest to be paid must exceed the statutory maximum; (3) the loan and interest must be absolutely repayable by the borrower; and (4) the lender must have a willful intent to enter into a usurious transaction."

		“The element of intent is narrow. ‘[T]he intent sufficient to support the judgment [of usury] does not require a conscious attempt, with knowledge of the law, to evade it. The conscious and voluntary taking of more than the legal rate of interest constitutes usury and the only intent necessary on the part of the lender is to take the amount of interest which he receives; if that amount is more than the law allows, the offense is complete.’ ” (<i>Korchemny v. Piterman</i> (2021) 68 Cal.App.5th 1032, 1043, quoting Ghirardo, supra, 8 Cal.4th at p. 798.) “ ‘In determining whether usurious interest has been charged or collected under a particular contract it is not permissible to consider only a portion of the term. The test is: Did the lender under his contract charge or receive a profit on his investment in excess of the maximum rate for the full period of the loan? If he has, there is usury; otherwise not.’ ” (<i>Sharp v. Mortgage Sec. Corp. of America</i> (1932) 215 Cal. 287, 290 [citation omitted].) Additionally, “the contract must in its inception require a payment of usury” (Id.) The first cause of action for usury alleges Defendant lent Plaintiff \$150,000 in May 2015. (FAC ¶ 15.) Plaintiff repaid the loan in full, discharging the obligation in June 2022, and paying \$91,000 in interest as rental income (a rate of 8.6 percent per annum). (Ibid.) The FAC alleges Defendant’s demand of an additional \$165,000 from Plaintiff is a conscious intent to charge an interest rate of 24.4 percent per year. (Id. at ¶¶ 13, 16.) The FAC further alleges that while Defendant did not express to Plaintiff her intent that the loan also entitled her to a permanent joint interest in the Property at the time the loan was made, she subsequently represented that this had been her intent from the inception of the loan. (Id. at ¶ 8.) Furthermore, the FAC alleges that Defendant demanded \$256,500 in interest on her seven-year \$150,000 loan, or 24.4 percent per annum. (Id. at ¶ 13.) The above allegations are sufficient to survive demurrer and thus the instant Demurrer is OVERRULED. Defendant to file an Answer to the FAC within 20 days’ notice of this ruling. Plaintiff to give notice.
58	Mejia vs. Hernandez 25-01529994	Motion for Leave to File Cross Complaint Defendant Victor Hugo Hernandez’s unopposed motion for leave to file a cross-complaint is GRANTED. (Code of Civ. Proc. § 26.50.) Defendant to file the Cross-Complaint within 10 days of this ruling. Moving Party is to give notice.